

B. Holidays on Weekend Days. Holidays falling on Sunday will be observed on the following Monday. Holidays falling on Saturday will be observed on the preceding Friday, which is a non-workday and will be banked for use by the employee as holiday leave.

C. Part-Time Employees. Part-time employees regularly assigned to work more than twenty (20) hours shall receive holidays, floating holidays and the birthday holiday prorated by comparing the time worked to forty (40) hours. Part-time employees regularly assigned to work twenty (20) hours or less are not entitled to holidays.

D. Probationary Employees. Probationary employees shall be granted holidays as they fall within the probationary period.

E. Seasonal, Temporary and Emergency Employees. Seasonal, temporary and emergency employees do not receive holidays with pay.

F. Employees Required to Work on Holidays. An employee who is required to work on a day observed by the City as a holiday shall receive his/her regular straight-time hourly rate of pay for all hours worked on said holiday, in addition to any holiday pay he/she is eligible to receive, in lieu of time off for said holiday.

G. Mandatory Attendance. In order to receive holiday pay, an employee shall work on his/her last scheduled shift immediately preceding the holiday and his/her first scheduled shift immediately after the holiday. Sick leave, unless approved by a physician, and/or unauthorized leaves of absences will not be construed as hours worked. Any authorized leaves will be considered hours worked.

### **Rule 33      Attendance, Leaves, Reports and Records**

A. Employees shall be in attendance and at work in accordance with the rules regarding hours of work, holidays and leaves. Any unauthorized absence may be cause for disciplinary action, up to and including discharge from employment. Authorized absence is defined as permission to be absent from duty for a specified purpose, with the right to return before or upon the expiration of the leave period.

B. All departments shall keep daily attendance records of employees which shall be reported to the Human Resources Director in the form and on the dates he/she shall specify. An employee who fails to return to duty is subject to the City's policy on job abandonment (See Rule 23 (Separation From City Employment)).

### **Rule 34      Vacation Leave**

A. Vacation Accrual. All regular, full-time employees except those excluded below, shall accrue vacation days commencing on their first day of employment, according to the following schedule. Probationary employees accrue, but may not take vacation leave, until they have completed their probationary period.

1 to 5 Years of Service

80 hours/year

|                             |                |
|-----------------------------|----------------|
| 6 to 10 Years of Service    | 120 hours/year |
| 11 or More Years of Service | 160 hours/year |

All management employees shall accrue:

|                             |                |
|-----------------------------|----------------|
| 1 to 5 Years of Service     | 80 hours/year  |
| 6 to 10 Years of Service    | 120 hours/year |
| 11 or More Years of Service | 160 hours/year |

Part-time employees regularly assigned to work more than twenty (20) hours shall receive vacation prorated for the time worked as it compares to forty (40) hours. Part-time employees regularly assigned to work twenty (20) hours or less do not receive or accrue vacation leave. Seasonal, temporary and emergency employees do not receive or accrue vacation leave.

Vacation shall not accrue on overtime hours or for attendance at City Council and/or commission meetings.

B. Vacation Postponement. If an employee does not take his/her vacation in any calendar year, he/she may, subject to written approval of the City Manager, be allowed such vacation during the succeeding calendar year. In no event, however, shall an employee accrue in excess of thirty (30) working days (two hundred forty [240] hours) of vacation time. When an employee reaches thirty (30) working days or two hundred forty (240) hours of vacation time, the employee shall cease accruing vacation time.

C. Holidays within Vacation Period. Holidays falling within the vacation period shall not be considered as part of an employee's vacation. Whenever a holiday falls within an employee's vacation period, an extra day may be added to his/her regular vacation period or used at the discretion of the employee with approval of the City Manager. Illness during a vacation period shall not be considered sick leave.

D. Unused Vacation Pay. An employee who has earned vacation benefits and wishes to terminate his/her employment with the City, will be paid for any unused vacation time at his/her regular rate of pay.

E. Scheduling of Vacation Leave. Vacation leave shall be taken at the convenience of the City. Employees shall obtain prior approval of their vacation leave from their immediate supervisor and Department Director before utilizing vacation leave.

F. Effect of Absence on Vacation Period. Absence due to sick leave or other approved leave of absence will not affect computations for vacation periods, unless such absences exceed one (1) month, in which case, that month, or more, shall be excluded from computation.

G. Vacation Cash Out Procedure. If an employee has three (3) or more years of service and has used eighty (80) hours of vacation time during the calendar year, the employee is eligible to cash out forty (40) hours of vacation time at his/her regular rate of pay.